

Court No. - 10

Case :- WRIT - C No. - 62531 of 2013

Petitioner :- Smt. Rajeshwari Pandey

Respondent :- Kanpur Electric Supply Co. Ltd. And 4 Others

Counsel for Petitioner :- Chandra Bhan Gupta

Counsel for Respondent :- S.K. Yadav

Hon'ble Arun Tandon,J.

Hon'ble Anjani Kumar Mishra,J.

We find absolutely no illegality in the letter of the Director (Commercial), U.P. Power Corporation Ltd., dated 6th July, 2013, as addressed to the Managing Director in the matter of installation of metering system before bush bar, and we find that the same is strictly in conformity with the provisions of the provisions contained in clause 4.9 of the Electricity Supply Code, 2005. Reliance has specifically been placed by the learned counsel for the petitioner on sub-clause (g) of clause 4.9 of the said Code, which only permits an individual resident of a housing society to seek electrical connection separate from the licensed supplier.

The said letter has only been written to avoid theft of electricity energy and, therefore, is in the larger interest of public.

In view of the aforesaid, we find no merit in the writ petition.

The writ petition is dismissed.

Order Date :- 14.11.2013

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Hon'ble Arun Tandon,J.

Hon'ble Anjani Kumar Mishra,J.

Re : Civil Misc. Review Application No.366998 of 2013

No case for review is made out.

Application stands rejected.

Order Date :- 18.7.2014

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